

state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order”].)

Request for Production No. 22. GRANTED IN PART. The Court finds that Plaintiff has made a factual showing of relevance as to all documents that relate to Defendant Vieira’s level of pre-incident training. (See RSS at 30:14-17.) The motion is DENIED as to this request in all other respects. Plaintiff fails to make a factual showing that all other documents responsive to this request are relevant to the action. Moreover, all such documents are part of Defendant Vieira’s employment record, and the Court finds that his privacy rights as to those records outweigh the need for discovery as to documents the relevance of which Plaintiff has failed to show. (See *Shaffer v. Super. Ct.* (1995) 33 Cal.App.4th 993, 999.) The Court also finds that the burden that Plaintiff seeks to place on Defendant, of redacting all “sensitive personal/private information” is undue and improper in the context of Plaintiff’s failure to make a factual showing of the relevance of such documents (outside of the category identified herein above).

Request for Production No. 27. GRANTED. The Court finds that the documents requested are relevant to the action. Defendant’s response indicates that he will produce documents in response to the Request. Plaintiff indicates no such documents have been produced. The Court can find nothing in Defendant’s opposition papers addressing this Request or updating that the documents have actually been produced.

C. The Parties’ Respective Requests for Sanctions are Denied

The parties each request sanctions against the other. Each of the statutes on which the parties rely provide for the imposition of sanctions “against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response....” (Code Civ. Proc., § 2030.300, subd. (d); see also Code Civ. Proc., § 2031.310, subd. (h).) Based on the mixed nature of the Court’s ruling, the Court finds neither that Plaintiff unsuccessfully made the motion, nor that Defendant Vieira unsuccessfully opposed it. As a result, each of the parties’ requests for sanctions is DENIED.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

9:00 AM 19CV43844 Motion to Compel Def Pacific Bell to provide further responses to Form Interrogatories, etc. and Comply with Agreements.... 01/30/2019 08/25/2021 Case Management Conference

Ptff/Pet: Bonavera, Angelo G.; Bonavera, Anthony J.; Cloud, Jeremiah J.; Cloud, Zechariah C.
Def/Res: California Department of Transportation; Pacific Bell Telephone Co.; Vieira, Victor R.

Atty: Carpenter, Zuckerman & Rowley LLP
Atty: Keowen, James Christopher; Tyson & Mendes LLP

TENTATIVE RULING: Plaintiff Jeremiah J. Cloud moves, pursuant to Code of Civil Procedure sections 2030.300, 2031.310, and 2031.320, for an ordering requiring Defendant Pacific Bell Telephone Company (PacBell) to: (1) provide further, complete, verified, objection-free responses to Form Interrogatories Nos. 7.1 through 7.3; (2) provide further, complete, verified, objection-free responses to Special Interrogatories Nos. 1-3; and (3) provide further, complete, verified objection-free responses and documents in response to Requests for Production, Set One, Nos. 1, 6, 7, 9, 11-14, 16, 18-20, 22-23, and 25-27. Plaintiff also requests, pursuant to Code of Civil Procedure sections 2030.300 and 2031.310, sanctions against PacBell and its counsel of record in the amount of \$11,088.00.

A. Plaintiff's Motion is Granted in Part as to Interrogatories

For interrogatories, the propounding party has the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, but "the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory." (Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221.)

The Court rules on the motion as to each of the subject interrogatories as follows.

Form Interrogatory No. 7.1. GRANTED IN PART. The Court reasonably interprets this interrogatory as seeking information relating to loss or damage to a vehicle for which the responding party seeks to hold another party to the litigation liable. PacBell responded that it "is not making any claim for vehicle or other property damage in this case." (Amended Separate Statement (Am.SS) at 2:15-16, 25-26, .) As such, the interrogatory, by its terms, requires no further response. (See Am.SS at 2:5 ["...if so, for each item of property..."].)

Plaintiff's claim that "Defendant Vieira's new response does not remove all objections..." is immaterial to this motion against PacBell. (See Am.SS at 3:13-14.)

The Court is unable to determine, from the record, whether PacBell's responses are all verified. Plaintiff's Am.SS refers to "Defendant Vieira's new response." (See Am.SS at 3:17.) To the extent that they are not, the motion is GRANTED for the limited purpose of obtaining a verified response.

Form Interrogatory Nos. 7.2 and 7.3. DENIED. Defendant PacBell is not obligated to produce information in response to either interrogatory because it did not refer to any item of property (relating to which he seeks to obtain damages through the present litigation) in response to Form Interrogatory No. 7.1.

Special Interrogatory No. 1. DENIED. The Court finds that the inclusion of the phrase "that YOU were aware of when YOU hired VICTOR VIEIRA," limits the interrogatory's relevance to a claim of negligent entrustment. Plaintiff's arguments that the interrogatory is more broadly relevant appear to refer to Special Interrogatory No. 1 propounded on Defendant Vieira, rather than to the present interrogatory. (Compare Am.SS at 7:27-8:12 with Amended Separate Statement Submitted in Support of Plaintiff's Motion to Compel Against Defendant Victor Vieira at 7:6-19.) "If, as here, an employer offers to admit vicarious liability for its employee's negligent driving, then claims against the employer based on theories of negligent entrustment, hiring, or retention become superfluous." (Diaz v. Carcamo (2011) 51 Cal.4th 1148, 1160.) PacBell affirmatively represents to the Court that it "has admitted vicarious liability." (Opposition at 8:25.)

Special Interrogatory Nos. 2 and 3. GRANTED. The Court finds that the interrogatories are each reasonably calculated to lead to the discovery of admissible evidence. PacBell fails to carry its burden of showing that Defendant Vieira has a right to privacy in his driving records.

B. Plaintiff's Motion is Granted in Part as to His Requests for Production

The burden on the propounding party is higher in compelling responses to production of documents than in compelling responses to interrogatories. The motion to compel must "set forth specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310 (b)(1).) "[A]bsent a claim of privilege or attorney

work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance.” (Kirkland v. Super. Ct. (2002) 95 Cal.App.4th, 92 98.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (Glenfed Development Corp. v. Super. Ct. (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is shown, the burden shifts to the party opposing the motion to justify its objection(s). (See Kirkland v. Super. Ct., supra, at 98.)

The Court rules on the motion as to each of the subject requests as follows.

Request for Production No. 1. The Court is unable to determine, from the record, whether PacBell’s responses are all verified. To the extent that they are not, the motion is GRANTED for the purposes of obtaining a verified response. The Court declines Plaintiff’s invitation to order Defendant to produce a response which does not refer to the protective order. (See Am.SS at 12:21-24.) The issue of whether the documents produced in response to this request are subject to the protective order or not is not properly before the Court on this motion to compel.

Request for Production Nos. 6, 7, 9, 20, 23, 25, 26. The Court is unable to determine, from the record, whether Defendant’s responses are all verified. To the extent that they are not, the motion is GRANTED for the sole purpose of obtaining a verified response.

Request for Production No. 11. DENIED. The Court finds the request overly broad and not limited to documents that are relevant to the action. While certain documents relating to certain types of auto-related claims may be relevant, Plaintiff’s request for all documents relating to any “claims that involve Defendant Victor Vieira’s acts” is overbroad.

Request for Production No. 12. DENIED. The Court finds the request overly broad and not limited to documents that are relevant to the action. While information relating to specific types of moving violations may be relevant, Plaintiff fails to make a factual showing that all documents relating to every moving violation Defendant has been issued are relevant.

Request for Production No. 13. GRANTED. The documents requested are relevant to the issues involved in the litigation.

Request for Production No. 14. GRANTED IN PART. The Court finds that Plaintiff has made a factual showing of relevance as to all documents that relate to Defendant Vieira’s level of pre-incident training. (See Am.SS at 20:21-22.) The motion is DENIED as to this request in all other respects. Plaintiff fails to make a factual showing that all other documents responsive to this request are relevant to the action. Finally, to the extent that Plaintiff seeks information that is part of Defendant Vieira’s employment record, the Court finds that Mr. Vieira’s right to privacy in that record outweighs the need for discovery as to documents the relevance of which Plaintiff has failed to show. (See Shaffer v. Super. Ct. (1995) 33 Cal.App.4th 993, 999.)

Request for Production No. 16. DENIED. Plaintiff fails to make any factual showing of relevance. The Court does not find that this request and Request No. 14 are so similar that Plaintiff’s arguments as to the latter apply here. (See Am.SS at 22:27-28.) Plaintiff makes no other argument in support of his motion to compel as to this request.

Request for Production No. 18. GRANTED IN PART. The Court finds that Plaintiff has made a factual showing of relevance as to all documents that relate to Defendant Vieira’s level of pre-incident training. (See Am.SS at 23:16-17, 20:21-22.) The motion is DENIED as to this request in all other respects. Plaintiff fails to make a factual showing that all other documents responsive to this request are relevant to the action. Finally, to the extent that Plaintiff seeks information that is part of Defendant Vieira’s employment record, the Court finds that Mr. Vieira’s right to privacy in that record outweighs the need for discovery as to documents the relevance of which Plaintiff has failed to show. (See Shaffer v. Super. Ct. (1995) 33 Cal.App.4th 993, 999.)

Request for Production No. 19. DENIED. Plaintiff seeks Defendant Vieira’s application with Defendant Pacific Bell Telephone Company on the grounds that it “may show Vieira’s level of pre-incident training and experience.” (Am.SS at 24:3-6.) The Court finds that while Defendant Vieira’s application may disclose his pre-incident training and experience, that information can be obtained by other means, including through deposition or by interrogatory, and the application is all but certain to contain private information that is not relevant to the action. (See Shaffer v. Super. Ct. (1995) 33 Cal.App.4th 993, 999.)

Request for Production No. 22. GRANTED IN PART. The Court finds that Plaintiff has made a factual showing of relevance as to all documents that relate to Defendant Vieira’s level of pre-incident training. (See Am.SS at 27:22-24.) The motion is DENIED as to this request in all other respects. Plaintiff fails to make a factual showing that all other documents responsive to this request are relevant to the action. Moreover, all such documents are part of Defendant Vieira’s employment record, and the Court finds that Mr. Vieira’s right to privacy in that record outweighs the need for discovery as to documents the relevance of which Plaintiff has failed to show. (See Shaffer v. Super. Ct. (1995) 33

Cal.App.4th 993, 999.) The Court also finds that the burden that Plaintiff seeks to place on Defendant, of redacting all “sensitive personal/private information” is undue in the context of Plaintiff’s failure to make a factual showing of the relevance of such documents (outside of the category identified herein above.)

Request for Production No. 27. GRANTED. The Court finds that the documents requested are relevant to the action. PacBell’s response indicates that it will produce documents in response to the Request. Plaintiff indicates no such documents have been produced. (See Am.SS at 34:11-12, 19-21.) The Court can find nothing in PacBell’s opposition papers addressing this Request.

C. The Parties’ Respective Requests for Sanctions are Denied

The parties each request sanctions against the other. Each of the statutes on which the parties rely provide for the imposition of sanctions “against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response....” (Code Civ. Proc., § 2030.300 (d); see also Code Civ. Proc., § 2031.310 (h).) Based on the mixed nature of the Court’s ruling, the Court finds neither that Plaintiff unsuccessfully made the motion, nor that PacBell unsuccessfully opposed it. As a result, each of the parties’ requests for sanctions is DENIED.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.